

STATE OF NEW YORK

3876--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. DINOWITZ, EPSTEIN, MITAYNES, KELLES, BURDICK, SIMON, GALLAGHER, SAYEGH, SEAWRIGHT, GIBBS, FORREST, ZINERMAN, COLTON, WEPRIN -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the judiciary law, in relation to increasing the amount of allowance that trial and grand jurors are entitled to in each court of the unified court system

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision (a) of section 521 of the judiciary law, as
2 amended by chapter 302 of the laws of 2002, is amended to read as
3 follows:
4 (a) Except as provided in subdivision (b) of this section, trial and
5 grand jurors in each court of the unified court system shall be entitled
6 to an allowance equal to the sum of [~~forty~~] seventy-two dollars per day
7 for each and every day of physical attendance wherein the court
8 convenes, except that no person who is employed shall be entitled to
9 receive such allowance if, pursuant to section five hundred nineteen of
10 this article, [~~his or her~~] their employer is prohibited from withholding
11 the first [~~forty~~] seventy-two dollars of wages of such person during
12 such period and such person's daily wages equal or exceed [~~forty~~] seven-
13 ty-two dollars. If such person's daily wages are less than [~~forty~~]
14 seventy-two dollars, [~~he or she~~] such person shall be entitled to
15 receive an allowance hereunder equal to the difference between [~~forty~~]
16 seventy-two dollars and the amount of [~~his or her~~] their daily wages.
17 Such fees and those expenses actually and necessarily incurred in
18 providing food and lodging for jurors shall be a state charge payable
19 out of funds appropriated to the office of court administration for that
20 purpose.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD07267-02-5

1 § 2. Section 519 of the judiciary law, as added by chapter 85 of the
2 laws of 1995, is amended to read as follows:

3 § 519. Right of juror to be absent from employment. Any person who is
4 summoned to serve as a juror under the provisions of this article and
5 who notifies [~~his or her~~] their employer to that effect prior to the
6 commencement of a term of service shall not, on account of absence from
7 employment by reason of such jury service, be subject to discharge or
8 penalty. An employer may, however, withhold wages of any such employee
9 serving as a juror during the period of such service; provided that an
10 employer who employs more than ten employees shall not withhold the
11 first [~~forty~~] seventy-two dollars of such juror's daily wages during the
12 first three days of jury service. Withholding of wages in accordance
13 with this section shall not be deemed a penalty. Violation of this
14 section shall constitute a criminal contempt of court punishable pursu-
15 ant to section seven hundred fifty of this chapter.

16 § 3. This act shall take effect on the thirtieth day after it shall
17 have become a law.